

## Mohd. Afzal v. State of U.P.

High Court of Judicature at Allahabad · Division Bench · 4 September 2012 · WRIT - C No. 44149 of 2012 · **Writ disposed; bill objection relegated to Executive Engineer**

### HEADNOTE

A writ challenging an electricity bill and demand on the plea that no connection stands in the petitioner's name, where facts require inquiry, is disposed of by relegating the consumer to a written objection before the Executive Engineer under the U.P. Electricity Supply Code, 2005, with coercive recovery stayed for two months.

### FACTUAL SUMMARY

Mohd. Afzal sought quashing of a 7 July 2012 demand notice for Rs 57,404. He said a 19 March 2012 bill for Rs 52,009 had been issued though no electricity connection stood in his name, the demand was therefore incorrect, and his father's name was wrongly recorded in the notice. Counsel for the corporation submitted that a billing grievance was to be raised by complaint before the Executive Engineer under the U.P. Electricity Supply Code, 2005.

### HOLDING-UNITS

#### HOLDING-UNIT · UP-2005::4.9

billing complaint

#### HOLDING

Where an electricity bill and subsequent demand are challenged on the plea that no connection stands in the petitioner's name and the notice records a wrong father's name, and the controversy requires adjudication of facts, the High Court will not decide the dispute in writ jurisdiction. The consumer is to file a written objection before the Executive Engineer, who shall consider it and take a decision within the time fixed; coercive steps on the demand are stayed for two months.

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### NOT DECIDED — NEGATIVE AUTHORITY

#### NOT DECIDED — WHETHER ANY ELECTRICITY CONNECTION STOOD IN THE PETITIONER'S NAME, AND WHETHER THE 19 MARCH 2012 BILL AND 7 JULY 2012 DEMAND WERE WRONGLY ISSUED

Left to the Executive Engineer on the petitioner's written objection ¶ 1